



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 22, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16359
(THIRD REVISION)

EXPIRATION DATE: 2028-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Department of Defense
Scott AFB, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 1.1, 1.2, 1.3, and 1.4 hazardous materials as break bulk cargo or in cargo transport units not considered closed by definition when the size and design of explosive articles makes it impractical or unsafe to be placed in a closed cargo transport unit or when material handling equipment (at embarking and debarking points) cannot facilitate handling closed cargo transportation units.
 - b. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or International Maritime Dangerous Goods Code (IMDG) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - c. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - d. No party status will be granted to this special permit.
 - e. This special permit serves as an “exemption” as specified in 7.9.1 of the IMDG Code (see IMO MSC/Circ. 1075-Granting Exemptions from the Provisions of the IMDG Code) and as a “Competent Authority Approval” as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.

Tracking Number: 2024045121

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101(k)(6), 172.101(k)(7), 172.101(k)(8), 172.101(k)(9), 172.101(k)(10), and 7.1.3.1 of the IMDG Code in that the materials may be stowed and transported in cargo transport units that are not closed, §§ 176.84(c)(1), 176.84(c)(2), Notes 14E, 15E, 26E, and 27E, and 3.2.1, Column 16 of the IMDG Code in that alternative stowage is permitted, as specified herein.
5. BASIS: This special permit is based on the application of Department of Defense dated April 29, 2024, and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
As appropriate	1.1 1.2 1.3 1.4	As appropriate	N/A

7. SAFETY CONTROL MEASURES:
- a. PACKAGING: Prescribed packaging must be as required by the HMR or the Classification of Explosives Letter (EX Approval) associated with the specific explosive and be an approved military container, crate or cradle for the explosive article.
- b. OPERATIONAL CONTROLS:
- (1) Packaging of the explosive material must be designated military shipping and storage containers and be of an environmentally sealed design to provide protection from wetness while on board the vessel;
- (2) Class 1 material shall be properly secured to prevent significant movement during voyage as follows:
- (i) Unitized cargo must be on flatracks and open type ISO containers in accordance with Department of Defense unit load drawings and requirements. Flat racks must be securely stowed and lashed to prevent shifting of the goods;

(ii) Break bulk packages must be secured by enclosing in boxes, cribs or cradles and proper lashing by use of wire rope, strapping or other means, including shoring and bracing, or both; and

(iii) Lashing of deck cargo is permitted if eye pads are used to attach the lashings. Lashings may not be secured to guard rails. Bulky articles must be shored.

(3) Articles meeting the definition and requirements of large and robust explosive articles normally intended for military use may be shipped fixed to cradles or contained in crates or other suitable handling devices. Stowage must provide adequate environmental protection to unpackaged articles of Class 1.

(4) Material transported under the terms of this special permit are authorized for transportation only when transported by, or under the direction or supervision of DOD.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the cargo transport units are loaded and offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo Vessel.

10. MODAL REQUIREMENTS: None

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB